

Line 4

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

CITIBANK, N.A.,

Plaintiffs,

v.

JESUS ANGEL DIAZ SALAZAR,

Defendant.

Case No. 24CV4366415

**ORDER GRANTING MOTION FOR
JUDGMENT ON THE PLEADINGS**

CitiBank, N.A.'s motion for judgment on the pleadings came on for hearing before the Court on April 3, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 2, 2025.

CitiBank, N.A.'s motion for judgment on the pleadings is GRANTED. A notice of motion with this hearing date and time was served on Defendant by U.S. mail on December 17, 2024. Defendant did not oppose the motion. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.) There is also good cause to grant this motion.

Plaintiff filed its complaint on April 23, 2024 seeking \$7,390.58 in unpaid credit card debt. Defendant answered on June 21, 2024 denying all allegations and asserting various affirmative defenses. Plaintiff served requests for admission on Defendant by U.S. mail on July 10, 2024, and, after Defendant failed to respond, obtained an order deeming the matters in those requests

1 admitted. The matters admitted constitute judicial admissions which the Court can consider on a
2 motion for judgment on the pleadings and demonstrate as a matter of law each element of Plaintiff's
3 claims. (*Pang v. Beverly Hsp., Inc.* (2000) 79 Cal.App.4th 986, 989; *Barsegian v. Kessler & Kessler*
4 (2013) 215 Cal.App.4th 446, 451.)

5 Accordingly, Plaintiff's motion for judgment on the pleadings is GRANTED. Plaintiff is
6 ordered to prepare and file a form of judgment for the Court's review within 10 calendar days of
7 service of this formal order.

8 **IT IS SO ORDERED.**

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10 Date: _____

11 Hon. Evette D. Pennypacker
12 Santa Clara Superior Court Judge
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Line 5

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

BART ZIEGENHAGEN, KENYA ZIEGENHAGEN,

Plaintiffs,

v.

MARIE A. HITCHCOCK, Trustee of John C.
Hitchcock Family Trust; and DOES 1-10,
inclusive

Defendants.

Case No. 23CV409783

**ORDER DENYING MOTION TO
COMPEL**

Plaintiff's motion to compel responses to special interrogatories came on for hearing before the Court on April 3, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 2, 2025.

I. Alleged Facts

According to the Complaint, Plaintiffs have been residential tenants at 115 Roosevelt Avenue, San Martin, California 95046 (the "Premises") under a written lease since February 29, 2016. (Complaint, ¶ 1.) Hitchcock is the Trustee of the John C. Hitchcock Family Trust (the "Trust"). (*Id.*) The Trust represented to Plaintiffs that the Premises would be ready for occupancy by the commencement date of the lease. (Complaint, ¶ 4.) Based on those representations, Plaintiffs decided to rent the Premises and made plans to move in. (Complaint, ¶ 5.) The Premises were not

1 ready for occupancy and the Trust made the representations to trick Plaintiffs into paying top dollar
2 rent and committing to the lease. (Complaint, ¶¶ 6-7.)

3 Three months after Plaintiffs moved in, the Trust began complaining that Plaintiffs'
4 improvements to the Premises were unauthorized. (Complaint, ¶ 9.) Plaintiffs had exclusive use of
5 the entire Premises, however, the Trust habitually trespassed, despite Plaintiffs' request that it not.
6 (Complaint, ¶ 10.) The Trust brought guests to the Premises and then livestock, which were left for
7 several months. (Complaint, ¶ 11.) The Trust also dug a ditch in the back yard, which left an open
8 trench. (Complaint, ¶ 12.) It also used Plaintiffs' water, without compensation. (*Id.*) Plaintiffs'
9 ongoing complaints about the Trust resulted in retaliation, harassment, threats, eviction notices,
10 and ultimately, the Trust filed an unlawful detainer action, which is currently pending. (Complaint,
11 ¶ 13.)

12 Plaintiffs initiated this action on January 11, 2023, asserting: (1) trespass; (2) invasion of
13 privacy; (3) deceit (4) nuisance; (5) retaliation; and (6) breach of contract.

14 Plaintiff has been trying, without success, to properly serve Defendant with the summons
15 and complaint for more than two years. The Court granted defendant's motion to quash the first
16 service attempt "because it is unclear from the summons whether Hitchcock was sued in her
17 representative capacity, individual capacity, or both," thus, the summons was defective. (June 28,
18 2023 Order Granting Motion to Quash.)

19 Plaintiff filed an amended complaint and received an amended summons. That summons
20 identifies the defendants as: "Marie A. Hitchcock, Trustee or her successors of the Marie A. Hitchcock
21 Marital Trust created under the Hitchcock Living Trust dated April 24, 2000 dba "The John C.
22 Hitchcock Family Trust" and "John C. Hitchcock Family Trust created under the Hitchcock Living
23 Trust Dated April 24, 2000" and DOES 1-10, inclusive.

24 Plaintiffs then attempted service through publication. Defendant again moved to quash.
25 Plaintiffs did not oppose the motion, and, once a defendant comes forward with evidence to
26 challenge proper service, the burden shifts to the plaintiff to demonstrate service was proper.
27 (*Sheard v. Superior Court* (1974) 40 Cal.App.3d 207, 211 ("where a defendant properly moves to
28 quash service of summons the burden is on the plaintiff to prove facts requisite to the effective

1 service”); *Ziller Electronics Lab Gmbh v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232-33
2 (burden is on the plaintiff to demonstrate by a preponderance of competent evidence that all
3 jurisdictional criteria are met).) Having failed to oppose the motion, Plaintiffs failed to meet this
4 burden, and the Court granted the motion to quash in its tentative ruling. Plaintiffs then failed to
5 notify Defendant of their intent to contest that ruling, thus the Court was obligated to adopt it at the
6 hearing which it did formally by order dated September 23, 2024. The last sentence of that order
7 states: “Defendant’s motion is GRANTED, and the complaint remains unserved.”

8 After receiving that order by U.S. mail sent on September 26, 2024, Plaintiffs served special
9 interrogatories on Defendant’s counsel by email on October 3, 2024, which “discovery was strictly
10 limited to issues concerning Defendants’ location, for purposes of serving Defendants”. (Declaration
11 of Bart Ziegenhagen, ¶2.) Defendants informed Plaintiffs they would not respond to the discovery
12 because the complaint and summons had not been served as of October 3, 2024, and Defendants
13 had not appeared in the case.

14 Plaintiffs now move to compel responses to those special interrogatories and for sanctions.
15 Defendant “specially appears” to oppose the motion and to obtain sanctions against Plaintiffs and
16 their attorney Ken Carlson (Bar #93602).

17 **II. Propriety of Pre-Service Discovery**

18 Code of Civil Procedure section 2030.020 provides, in relevant part:

19 (b) A plaintiff may propound interrogatories to a party without leave
20 of court at any time that is 10 days after the service of the summons
21 on, or appearance by, that party, whichever occurs first.

22 ...

23 (d) Notwithstanding subdivisions (b) and (c), on motion with or
24 without notice, the court, for good cause shown, may grant leave to a
25 plaintiff to propound interrogatories at an earlier time.

26 (Code Civ. Proc., § 2030.020.)

27 As of October 3, 2024 when the special interrogatories were served, Plaintiffs had not served
28 the summons, Defendants had not appeared, and Plaintiffs had not sought leave of Court to serve

1 the special interrogatories. Plaintiffs nevertheless argue serving interrogatories was proper under
2 *1880 Corp. v. Superior Court of City and County of San Francisco* (1962) 57 Cal.2d 840, 842-843; *In re*
3 *Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 127; and *Preciado v. Freightliner*
4 *Custom Chassis Corporation* (2023) 87 Cal.App.5th 964, 972, which Plaintiff argues “establish an
5 *interpretation, extension or exception* to Code of Civil Procedure §2030.020.” (Reply, p.2.) These
6 cases do not support Plaintiffs’ decision to serve discovery before serving the amended summons
7 and complaint without leave of court.

8 *Preciado v. Freightliner Custom Chassis Corporation* stands for the noncontroversial legal
9 proposition that “A trial court has the discretion to continue the hearing on a motion to quash
10 service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on
11 jurisdictional issues.” (*HealthMarkets, Inc. v. Superior Court* (2009) 171 Cal.App.4th 1160, 1173 [90
12 Cal. Rptr. 3d 527].) ‘In order to prevail on a motion for a continuance for jurisdictional discovery,
13 the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts
14 establishing jurisdiction.’ (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 127
15 (*Automobile Antitrust Cases*).)” (*Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal.App.5th
16 964.)

17 Similarly, *In re Automobile Antitrust Cases I & II* holds:

18 A plaintiff attempting to assert jurisdiction over a nonresident defendant
19 is entitled to an opportunity to conduct discovery of the jurisdictional
20 facts necessary to sustain its burden of proof. (*Magnecomp Corp. v.*
21 *Athene Co., supra*, 209 Cal. App. 3d at p. 533.) In order to prevail on a
22 motion for a continuance for jurisdictional discovery, the plaintiff should
23 demonstrate that discovery is likely to lead to the production of evidence
24 of facts establishing jurisdiction. (See, e.g., *Beckman v. Thompson* (1992)
25 4 Cal.App.4th 481, 486–487 [6 Cal. Rptr. 2d 60].) Plaintiffs in this matter
26 did not do so. . . Even when the underlying complaint alleges a
27 conspiracy, the plaintiff must still offer evidence tending to support the
28 existence of personal jurisdiction over each named nonresident

defendant. (See *Kaiser, supra*, 86 Cal. App. 3d at p. 901; see pt. IV.A.3., *ante*.)

(*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100.)

And *1880 Corp. v. Superior Court of City and County of San Francisco* (1962) 57 Cal.2d 840, 842-843 teaches:

Interrogatories may be served upon any adverse party at any time after service of the summons or the appearance of such adverse party and without leave of court, except that, if service of interrogatories is made by the plaintiff within 10 days after such service of summons or appearance, leave of court granted with or without notice must first be obtained.

...

The word "appearance," set forth without qualification, is not limited to a general appearance, and Atlas, the moving party, is obviously an "adverse party" with respect to the motion to quash.

(*1880 Corp. v. Superior Court of San Francisco* (1962) 57 Cal.2d 840 (emphasis added).)

Plaintiffs are simply wrong that these cases "establish an *interpretation, extension or exception* to Code of Civil Procedure §2030.020." (Reply, p.2.) In every instance, the defendants in these cases were served with the summons and complaint and were contesting *personal jurisdiction*. Plaintiffs indisputably did not serve Defendants with the amended summons and complaint before serving the special interrogatories; there was thus no motion to quash pending, and no basis for *jurisdictional* discovery. Even now that a motion to quash is pending, there is no basis for *jurisdictional* discovery that was at issue in the above-cited cases. Plaintiffs served discovery to find Defendants' location so they could serve the amended summons and complaint. That is not *jurisdictional* discovery.

Plaintiffs' motion to compel is accordingly DENIED.

III. Whether Ken Carlson Should be Sanctioned

Plaintiffs are appearing in pro per; they have no listed counsel of record. However, attorney

1 Ken Carlson drafted and served the special interrogatories, the motion to compel and the reply.
2 Defendants seek \$2,475 in sanctions against Ken Carlson and Plaintiffs jointly and severally to
3 reimburse Defendants for the fees incurred spending 9.9 hours attempting to meet and confer with
4 Plaintiffs regarding the impropriety of the special interrogatories and responding to this discovery
5 motion. The Court agrees sanctions are appropriate and that the amount sought is reasonable.
6 However, the Court concludes Ken Carlson should be solely responsible for paying this sanction.

7 “To the extent authorized by the chapter governing any particular discovery method or any
8 other provision of this title, the court, after notice to any affected party, person, or attorney, and
9 after opportunity for hearing, may impose. . . sanctions against *anyone* engaging in conduct that is a
10 misuse of the discovery process.” (Code Civ. Proc. § 2023.030 (emphasis added).) This includes “a
11 monetary sanction ordering that one engaging in the misuse of the discovery process, **or any**
12 **attorney advising that conduct**, or both pay the reasonable expenses, including attorney’s fees,
13 incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030(a) (emphasis added).)

14 “Misuses of the discovery process include, but are not limited to “(a) Persisting, over
15 objection and without substantial justification, in an attempt to obtain information or materials that
16 are outside the scope of permissible discovery[;] (b) Using a discovery method in a manner that
17 does not comply with its specified procedures[;]. . . (h) Making or opposing, unsuccessfully and
18 without substantial justification, a motion to compel or to limit discovery[; and]. . . (i) Failing to
19 confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and
20 good faith attempt to resolve informally any dispute concerning discovery, if the section governing
21 a particular discovery motion requires the filing of a declaration stating facts showing that an
22 attempt at informal resolution has been made.” (Code Civ Proc § 2023.010.)

23 It is clear Ken Carlson devised this discovery strategy and implemented it. Mr. Carlson’s
24 position that he is not counsel of record in this case and therefore cannot be subject to sanctions is
25 not supported by statute, case law, or the evidence on this record. That position is also contrary to
26 the California ethical rules of conduct.

27 Accordingly, attorney Ken Carlson is ordered to appear on May 8, 2025 in department 6 at 9
28 a.m. and show cause why \$2,475 in sanctions should not be imposed against him alone for abuse of

1 the discovery process.

2 **IV. Whether Defendant's Motion for Sanctions Constitutes an Appearance**

3 On March 20, 2025, Defendant filed "Hitchcock's notice of special appearance in connection
4 with opposition to plaintiff's motion to compel responses to special interrogatories; request for
5 award of sanctions for discovery abuse and for order to show cause to attorney Ken Carlson why he
6 should not be held jointly and severally liable with plaintiffs for such sanctions". In this filing,
7 Defendants state:

8 PLEASE TAKE NOTICE THAT Defendant Marie A. Hitchcock, alleged
9 Trustee of The Marie Hitchcock Marital Trust Created Under The
10 Hitchcock Living Trust Dated April 24, 2000 dba "The John C. Hitchcock
11 Family Trust" and "John C. Hitchcock Family Trust Created Under The
12 Hitchcock Living Trust Dated April 24, 2000," specially appearing and not
13 submitting to the jurisdiction of this court; has filed a motion to quash
14 summons and attempted February 21, 2025 service thereof. That motion
15 is currently pending before the court.

16 Consequently, the filing of this opposition and sanctions request does not
17 constitute a general appearance that would waive Hitchcock's
18 jurisdictional defenses to this action. (CCP §418.10(e)(1) [no act by a
19 party who files a motion to quash constitutes an appearance, unless the
20 court denies the motion to quash, in which case the defendant is not
21 deemed to have generally appeared until entry of the order denying the
22 motion to quash].)

23 "[A] statement that an appearance is special is not conclusive on the issue. Whether an
24 appearance is general or special is determined by the character of the relief sought and not by the
25 intention of the party that it shall or shall not operate as a general or special appearance."
26 (*Sunrise Financial, LLC v. Superior Court* (2019) 32 Cal.App.5th 114 [internal citations and
27 quotations omitted].) Thus, in *Sunrise Financial*, for example, defendants' opposition to a motion to
28 transfer constituted a general appearance even though they stated they were specially appearing to

1 oppose the motion because the defendants were asking the court to exercise its authority not to
2 transfer and consolidate two cases pending in different counties. (*Id.*) However, moving for
3 attorneys' fees incurred in connection with a motion to quash is not a general appearance. (*See, e.g.,*
4 *Shisler v. Sanfer Sports Cars, Inc.* (2008) 167 Cal.App.4th 1; *Berard Construction Co. v. Municipal*
5 *Court* (1975) 49 Cal.App.3d 710, 715–716.)

6 *Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32 provides a useful summary of California law
7 on this issue:

8 Section 410.50, subdivision (a) provides in part, “A general appearance
9 by a party is equivalent to personal service of summons on such
10 party.” (*Hamilton v. Asbestos Corp.* (2000) 22 Cal.4th 1127, 1147 [95
11 Cal. Rptr. 2d 701, 998 P.2d 403]; *Fireman's Fund Ins. Co. v. Sparks*
12 *Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145 [8 Cal. Rptr. 3d
13 446];) Thus, the Courts of Appeal have explained: “A general
14 appearance operates as a consent to jurisdiction of the person,
15 dispensing with the requirement of service of process, and curing
16 defects in service.’ (2 Witkin, Cal. Procedure (4th ed. 1996) Jurisdiction,
17 § 190, p. 756.)” (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.,*
18 *supra*, 114 Cal.App.4th at p. 1145; see also *Security Loan and Trust*
19 *Company of Southern California v. Boston and South Riverside Fruit*
20 *Company* (1899) 126 Cal. 418, 422 [58 P. 941]; *In re Marriage of*
21 *Torres* (1998) 62 Cal.App.4th 1367, 1381 [73 Cal. Rptr. 2d 344]; 2
22 Witkin, Cal. Procedure (4th ed. 1996) Jurisdiction, § 199, pp. 764–
23 765.) Section 1014 states, “A defendant appears in an action when the
24 defendant answers, demurs, files a notice of motion to strike, files a
25 notice of motion to transfer pursuant to Section 396b, ... gives the
26 plaintiff written notice of appearance, or when an attorney gives notice
27 of appearance for the defendant.” The statutory list contained in
28 section 1014 of what constitutes an appearance is not exclusive. A

1 general appearance occurs when the defendant takes part in the action
2 or in some manner recognizes the authority of the court to
3 proceed. (*Hamilton v. Asbestos Corp., Ltd., supra*, 22 Cal.4th at p. 1147;
4 *Sanchez v. Superior Court* (1988) 203 Cal. App. 3d 1391, 1397 [250 Cal.
5 Rptr. 787].)

6
7 If the defendant confines its participation in the action to objecting to
8 lack of jurisdiction over the person, there is no general
9 appearance. (*People v. Ciancio* (2003) 109 Cal.App.4th 175, 192 [134
10 Cal. Rptr. 2d 531]; *In re Marriage of Torres, supra*, 62 Cal.App.4th at p.
11 1381.) However, a party who seeks relief on any basis other than a
12 motion to quash for lack of personal jurisdiction will be deemed to have
13 made a general appearance and waived all objections to defects in
14 service, process, or personal jurisdiction. (*Greener v. Workers' Comp.*
15 *Appeals Bd., supra*, 6 Cal.4th at p. 1037; *California Dental Assn. v.*
16 *American Dental Assn.* (1979) 23 Cal.3d 346, 352 [152 Cal. Rptr. 546,
17 590 P.2d 401]; *Tsakos Shipping & Trading, S.A. v. Juniper Garden Town*
18 *Homes, Ltd.* (1993) 12 Cal.App.4th 74, 89 [15 Cal. Rptr. 2d 585]; *Terzich*
19 *v. Medak* (1978) 78 Cal. App. 3d 636, 639 [144 Cal. Rptr. 323].)

20
21 The Courts of Appeal have described the scope of actions in the
22 litigation process which constitute a general appearance as follows: "A
23 general appearance occurs where a party, either directly or through
24 counsel, participates in an action in some manner which recognizes the
25 authority of the court to proceed. It does not require any formal or
26 technical act. (*Sanchez v. Superior Court*[, *supra*,] 203 Cal. App. 3d [at p.]
27 1397 ... ; *Creed v. Schultz* (1983) 148 Cal. App. 3d 733, 740 [196 Cal.
28 Rptr. 252]; see also Code Civ. Proc., § 1014.) 'If the defendant "raises

1 any other question, or asks for any relief which can only be granted upon
2 the hypothesis that the court has jurisdiction of his person, his
3 appearance is general" [Citation.]' (*California Overseas*
4 *Bank v. French American Banking Corp.* (1984) 154 Cal. App. 3d 179,
5 184 [201 Cal. Rptr. 400].)" (*Mansour v. Superior Court* (1995) 38
6 Cal.App.4th 1750, 1756–1757 [46 Cal. Rptr. 2d 191], italics
7 added.) Thus, if a defendant seeks any affirmative relief on the merits,
8 the application may be deemed a general appearance. (*In re Marriage*
9 *of Torres, supra*, 62 Cal.App.4th at p. 1381; *Tsakos Shipping & Trading,*
10 *S.A. v. Juniper Garden Town Homes, Ltd., supra*, 12 Cal.App.4th at p. 89.)

11
12 In that respect, California courts have found that parties have generally
13 appeared under varying circumstances in which the defendants sought
14 affirmative relief. (*Greene v. Committee of Bar Examiners* (1971) 4
15 Cal.3d 189, 200 [93 Cal. Rptr. 24, 480 P.2d 976] [party appears by filing
16 deposition and asking to be admitted to practice law]; *Lacey v.*
17 *Bertone* (1949) 33 Cal.2d 649, 651–652 [203 P.2d 755] [motion for
18 dissolution or modification of injunction]; *In re Marriage of*
19 *Torres, supra*, 62 Cal.App.4th at p. 1381 [wife seeking financial
20 assistance by way of support order generally appeared]; *Mansour v.*
21 *Superior Court, supra*, 38 Cal.App.4th at pp. 1756–1757 [general
22 appearance found where attorney issued deposition subpoenas in
23 order to depose two doctors on issues unrelated to jurisdiction]; *Alioto*
24 *Fish Co. Ltd. v. Alioto* (1994) 27 Cal.App.4th 1669, 1688–1689 [34 Cal.
25 Rptr. 2d 244] [filing oppositions on the merits to fee and receiver
26 orders as well as a sanctions motion constituted general
27 appearance]; *Tsakos Shipping & Trading, S.A. v. Juniper Garden Town*
28 *Homes, Ltd., supra*, 12 Cal.App.4th at p. 89 [attorney filed answer

1 and took part in proceedings]; *In re Matthew B.* (1991) 232 Cal. App. 3d
2 1239, 1270–1271 [284 Cal. Rptr. 18] [addressing the merits of
3 paternity issue as well as execution of stipulation for entry of judgment
4 and to modify child or family support constituted a general
5 appearance]; 366-386 *Geary St., L.P. v. Superior Court* (1990) 219 Cal.
6 App. 3d 1186, 1194 fn. 2 [268 Cal. Rptr. 678] [seeking and obtaining
7 order continuing a hearing is a general appearance]; *Rhyne v. Municipal*
8 *Court* (1980) 113 Cal. App. 3d 807, 815–816 [170 Cal. Rptr. 312] [filing
9 a demurrer and a motion to continue]; *Kriebel v. City Council of the City*
10 *of San Diego* (1980) 112 Cal. App. 3d 693, 699–700 [169 Cal. Rptr. 342]
11 [either filing a written stipulation extending time or an answer
12 constituted a general appearance]; *RCA Corp. v. Superior Court* (1975)
13 47 Cal. App. 3d 1007, 1009 [121 Cal. Rptr. 441] [a written stipulation
14 extending time “within which to appear”]; *Chitwood v. County of Los*
15 *Angeles* (1971) 14 Cal. App. 3d 522, 527–528 [92 Cal. Rptr. 441]
16 [defendant generally appeared when it filed, in its own name,
17 interrogatories which would only be appropriate if it was appearing as
18 a fictitious defendant]; *Knoff v. City & County of San Francisco* (1969) 1
19 Cal. App. 3d 184, 201 [81 Cal. Rptr. 683] [continuance motion]; *O’Keefe*
20 *v. Miller* (1965) 231 Cal. App. 2d 920, 922–926 [42 Cal. Rptr. 343] [filing
21 stipulation, pleadings, and points and authorities in support of motion
22 for an order to continue pretrial conference and trial constituted
23 general appearance]; *Estate of Elftman* (1958) 160 Cal. App. 2d 10, 12
24 [324 P.2d 977] [attorney appearance at hearing can result in general
25 appearance]; *Wilson v. Barry* (1951) 102 Cal. App. 2d 778, 781 [228
26 P.2d 331] [executing affidavit in support of a motion for summary
27 judgment made on behalf of himself and other defendants for whom
28 the attorney allegedly was unauthorized to act].) A court is thus

1 required to analyze the defendant's papers to determine if any
2 affirmative relief could be granted on the merits, which is a general
3 appearance. This is distinguished from a mere request for a dismissal
4 based on a statutory provision, which is not a general appearance.
5 (*Berard Construction Co., Inc. v. Municipal Court* (1975) 49 Cal. App. 3d
6 710, 713-720 [122 Cal. Rptr. 825] [statutory motion to dismiss on
7 ground of inconvenient forum]; *Brock v. Fouchy* (1946) 76 Cal. App. 2d
8 363, 370 [172 P.2d 945].)

9 (*Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32.) These cases make clear that a motion to quash is
10 not a magic shield that prevents any action taken by a defendant from being a general appearance.
11 However, opposing this motion to compel and seeking monetary sanctions for having to do so is not
12 a general appearance. If this discovery had been served in connection with a motion to quash,
13 Defendants would clearly have been able to seek relief from responding to it. (*1880 Corp. v. Superior*
14 *Court of San Francisco* (1962) 57 Cal.2d 840 (“we hold that objections to interrogatories upon the
15 ground they are oppressive, made during the pendency of a motion to quash, do not constitute a
16 general appearance.”) It would be an absurd result to find differently here.

17 Thus, the Court finds Defendants’ request for sanctions is not a general appearance based on
18 the facts of this case.

19 The Court is aware that there is a motion to quash scheduled for hearing on June 3, 2025,
20 and that Defense counsel will accept service if Plaintiffs agree to limit recovery to Hitchcock’s
21 \$300,000 insurance policy. Although the Court does not currently have jurisdiction over Hitchcock
22 and thus cannot order her to do so, the Court would like to see the parties attend a judicial mediation
23 with Judge JoAnne McCracken and requests the parties be prepared to discuss this possibility during
24 the hearing.

25 **IT IS SO ORDERED.**

26
27 Date: _____

28 _____
Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 6

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

SANDRA DIAZ-KELLY AND JULIAN KELLY,

Plaintiffs,

v.

FLOWERS BAKING CO. OF MODESTO, LLC
AND DOES 1 TO 50,

Defendants.

Case No. 24CV434653

**ORDER GRANTING DEFENDANT'S
MOTIONS TO COMPEL RESPONSES TO
WRITTEN DISCOVERY AND TO DEEM
MATTERS IN REQUESTS FOR
ADMISSION ADMITTED**

Defendant Flowers Banking Co. of Modesto, LLC's motion to compel Plaintiffs' responses to written discovery requests and motion to have matters in requests for admission be deemed admitted came on for hearing before the Court on April 3, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 2, 2025.

Notice of these motions was served on Plaintiffs by electronic mail on February 28, 2025. Plaintiffs failed to oppose the motions. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.) There is also good cause to grant these motions.

Defendant served form interrogatories (set one), special interrogatories (set one), requests for admission (set one), and requests for production of documents (set one) on October 22, 2024.

1 Defendant granted Plaintiffs numerous extensions, but Plaintiffs still failed to respond. In fact, as of
2 the date of this tentative ruling, Plaintiffs have taken no action to address these discovery issues.

3 Accordingly, Defendant's motions are GRANTED.

4 1. Within ten (10) days of the service date of the formal order, Plaintiffs are ordered to serve
5 verified, code compliant written responses to the following discovery requests without objections:

6 (a) Defendant's Special Interrogatories (Set One) to Plaintiff Sandra Diaz-Kelly

7 (b) Defendant's Form Interrogatories (Set One) to Plaintiff Sandra Diaz-Kelly

8 (c) Defendant's Request for Production of Documents (Set One) to Plaintiff Sandra Diaz-Kelly

9 (d) Defendant's Special Interrogatories (Set One) to Plaintiff Julian Kelly

10 (e) Defendant's Form Interrogatories (Set One) to Plaintiff Julian Kelly

11 (f) Defendant's Request for Production of Documents (Set One) to Plaintiff Julian Kelly

12 2. The matters set forth in the requests for admission attached as Exhibit A to Defendant's
13 notice of motion and motion deeming truth of facts are deemed admitted and conclusively
14 established for all purposes in this action.

15 3. Plaintiffs are ordered jointly and severally to pay a total of \$1,447.50 to Defendants within
16 thirty (30) days of the service date of this formal order.

17
18 **IT IS SO ORDERED.**

19
20
21 Date: _____

22 _____
23 Hon. Evette D. Pennypacker
24 Santa Clara Superior Court Judge
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Line 8

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

CAMPBELL HIGH SCHOOL TEACHERS
ASSOCIATION, CTA/NEA,

Petitioner,

v.

CAMPBELL UNION HIGH SCHOOL
DISTRICT,

Respondent.

Case No. 24CV453762

**ORDER GRANTING CAMPBELL HIGH
SCHOOL TEACHERS ASSOCIATION,
CTA/NEA’S PETITION TO COMPEL
ARBITRATION**

Petitioner Campbell High School Teachers Association, CTA/NEA's ("Association") motion to compel Respondent Campbell Union High School District ("District") to arbitration came on for hearing before the Court on April 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 3, 2025.

I. Alleged Facts

District is a public school district in Campbell, California that employs numerous teachers in grades nine through twelve. (Declaration of Kim McCarthy ("McCarthy Decl."), ¶2.) The Association is a labor union representing these teachers. (McCarthy Decl., ¶3.) The parties have a collective bargaining agreement for the period July 1, 2019 through June 30, 2022, ("CBA") the period relevant to the underlying dispute.

Article 10 of the CBA contains a grievance procedure. "Grievance" is defined as "a claim by the aggrieved that he or she has been adversely affected by a violation, misinterpretation or misapplication of this Agreement." (McCarthy Decl., Ex. A, p. 11.) The stated purpose of the grievance procedure "is to secure, at the lowest possible administrative level, solutions to grievances. Both parties agree that these proceedings will be kept as informal and confidential as may be appropriate at any level of the procedure." (*Id.*) The final step in the grievance procedure is arbitration:

3. Step3-Arbitration

If the grievant is not satisfied with the disposition of the grievance at Step 2 within fifteen (15) days CHSTA may submit the grievance to arbitration. The parties shall request a list of seven (7) arbitrators from the California State Mediation and Conciliation Services within ten (10) days of the Association submitting the grievance to arbitration. A representative of the Association and the District's representative shall select the arbitrator from the list by eliminating names until one name remains. The first option of elimination shall alternate. The one remaining name shall be the arbitrator. The parties shall make every good faith effort to strike rules within ten (10) days of receipt of the list

1 unless an extension of time has been agreed to in writing.

2 If any question arises as to the arbitrability of the grievance, such
3 question will be heard by the arbitrator prior to proceeding to the merits.
4 The arbitrator shall have no authority to add to, subtract from, or modify
5 the terms of this Agreement, and the arbitrator shall interpret this
6 Agreement in accordance with accepted arbitral standards of contract
7 interpretation.

8 If any party requests a transcript of the proceedings, that party shall bear
9 the full costs for that transcript. If the parties request one transcript, the
10 total cost of the transcript shall be divided equally between the District
11 and the aggrieved.

12 Once the arbitrator has been selected, hearings shall commence at the
13 convenience of the arbitrator. The arbitrator's decision will be in writing
14 and will set forth the arbitrator's findings of fact, reasoning and
15 conclusions of the issues submitted. The arbitrator will be without power
16 or authority to make a decision which requires the commission of an act
17 prohibited by law or which is violative of the terms of this Agreement.
18 However, it is agreed that the arbitrator is empowered to include in any
19 award such financial reimbursement or other remedies the arbitrator
20 judges to be proper. The award of the arbitrator will be final and binding
21 on the parties and a copy will be submitted to the Superintendent, the
22 aggrieved, and the Association.

23 All costs for the services of the arbitrator, including, but not limited to,
24 per diem expenses, the arbitrator's travel and subsistence expenses, and
25 the cost of any hearing room will be borne equally by the District and the
26 aggrieved. All other costs will be borne by the party incurring them.

27 (McCarthy Decl., Ex. A, p. 12-13.)

28 In the fall of 2020, Bryce Hadley, an English teacher at the District's Westmont High School,

1 taught a lesson on Nigerian author Chinua Achebe's book *Things Fall Apart* that required students
2 to read an essay by Achebe on racism in Joseph Conrad's *Heart of Darkness*, which quotes Conrad's
3 use of the N-word. (McCarthy Decl., ¶8.) After warning students that the essay contained racist
4 language, Mr. Hadley read a portion of the essay aloud. (*Id.*) The District received a complaint about
5 this lesson and gave Mr. Hadley a Notice of Unprofessional Conduct on November 20, 2020, which
6 the District claims is described in Education Code section 44930 ("45/90-Day Notice"). (McCarthy
7 Decl., ¶8, Ex. B.) The parties thereafter engaged in the first two steps of the grievance process
8 outlined in CBA Article 10. After the parties scheduled mediation, District informed Association it
9 would not mediate the 45/90-Day Notice because it was not a "grievance" as defined by the CBA.
10 This petition followed.

11 **II. Legal Standard and Analysis**

12 In a motion to compel arbitration, the Court must determine "(1) whether there is a valid
13 agreement to arbitrate between the parties; and (2) whether the dispute in question falls within the
14 scope of that arbitration agreement." (*Bruni v. Didion* (2008) 160 Cal. App. 4th 1272, 1283 (citations
15 omitted).) "The petitioner bears the burden of proving the existence of a valid arbitration
16 agreement by a preponderance of the evidence, and a party opposing the petition bears the burden
17 of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these
18 summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations,
19 and other documentary evidence, as well as oral testimony received at the court's discretion, to
20 reach a final determination. [Citation.]" (*Bruni*, 160 Cal. App. 4th at 1282 (citations omitted).)

21 The District does not dispute that the CBA contains an arbitration provision. The District's
22 argument is that the 45/90 Day Notice is a creature of statute and therefore not subject to
23 arbitration under the CBA. The Association argues (a) the 45/90 Day Notice is a grievance, but (b)
24 in any event, the CBA's express language requires the question of whether or not it is a grievance be
25 determined by the arbitrator.

26 "[P]arties can agree to arbitrate 'gateway' questions of 'arbitrability,' such as whether the
27 parties have agreed to arbitrate or whether their agreement covers a particular controversy." (*Rent-*
28 *A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68–69.) Similarly, "[p]arties to an arbitration

1 agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the
2 enforceability of the agreement.” (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227,
3 239 .) “Under California law, it is presumed the judge will decide arbitrability, unless there is clear
4 and unmistakable evidence the parties intended the arbitrator to decide arbitrability.” (*Nelson v.*
5 *Dual Diagnosis Treatment Center, Inc.* (2022) 77 Cal. App. 5th 643, 654 (internal citations and
6 quotations omitted).) “The answer to “the question ‘who has the primary power to decide
7 arbitrability’ turns upon what the parties agreed about *that* matter.” (*First Options of Chicago, Inc. v.*
8 *Kaplan* (1995) 514 U.S. 938, 943 [131 L. Ed. 2d 985, 115 S. Ct. 1920] (*First Options*), original italics.)
9 “When deciding whether the parties agreed to arbitrate a certain matter (including arbitrability),
10 courts generally ... should apply ordinary state-law principles that govern the formation of
11 contracts.” (*Id.* at p. 944.) (*Nelson v. Dual Diagnosis Treatment Center, Inc.* (2022) 77 Cal. App. 5th
12 643, 654.)

13 “There are two prerequisites for a delegation clause to be effective. First, the language of the
14 clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable
15 under state contract defenses such as fraud, duress, or unconscionability.” (*Tiri, supra*, 226
16 Cal.App.4th at p. 242; see also *Rent-A-Center, supra*, 561 U.S. at pp. 68, 69, fn. 1.) The “clear and
17 unmistakable” test reflects a “*heightened* standard of proof” that reverses the typical presumption
18 in favor of the arbitration of disputes. (*Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771,
19 787 (*Ajamian*).) (*Aanderud v. Superior Court* (2017) 13 Cal. App. 5th 880, 892.) “To be effective, any
20 attempted delegation cannot be equivocal or ambiguous. Instead, the issue of arbitrability
21 presumptively remains with the court except “where ‘the parties *clearly and unmistakably* provide
22 otherwise.” (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130 (*Brennan*);
23 accord, *Dennison, supra*, 47 Cal.App.5th at p. 209.) “[C]ourts should not assume that the parties
24 agreed to arbitrate arbitrability unless there is ‘clea[r] and unmistakabl[e]’ evidence that they did
25 so.” (*First Options, supra*, 514 U.S. at p. 939.) (*Nelson v. Dual Diagnosis Treatment Center, Inc.* (2022)
26 77 Cal. App. 5th 643, 655.)

27 The CBA states: “If any question arises as to the arbitrability of the grievance such question
28 will be heard by the arbitrator prior to proceeding to the merits.” District argues this does not

1 clearly delegate the question of whether the 45/90 Day Notice is arbitrable because it is not a
2 “grievance.” The Court is not persuaded.

3 First, “grievance” is defined as “a claim by the aggrieved that he or she has been adversely
4 affected by a violation, misinterpretation or misapplication of this Agreement.” And an “aggrieved”
5 “may be one or more members of the unit asserting a grievance, or the Association.” When this
6 language is read in the context of Article 10 as a whole, it is plain that the parties’ intent at the time
7 of entering the CBA was for any Association members’ claim that the District violated the CBA be
8 subject to arbitration.

9 Next, even if the Court is incorrect about that, the parties clearly and unequivocally delegated
10 that determination to the arbitrator. Whether or not the 45/90 Day Notice is a “grievance” requires
11 examination and interpretation of the CBA, a task the parties unequivocally delegated to the
12 arbitrator.

13 Accordingly, Petitioner’s motion to compel arbitration is GRANTED.

14 This case is stayed. The parties shall appear for an arbitration status hearing on October 9,
15 2025 at 10:00 a.m. in Department 6.

16 **IT IS SO ORDERED.**

17
18 Date: _____

19 Hon. Evette D. Pennypacker
20 Santa Clara Superior Court Judge
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Line 11

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

RALPH JACKSON,

Plaintiff,

v.

COUNTY OF SANTA CLARA; and DOES 1-25,

Defendants.

Case No. 23CV412192

**ORDER SUSTAINING DEMURRER TO
SECOND AMENDED COMPLAINT**

Defendant County of Santa Clara's ("County") demurrer to plaintiff Ralph Jackson's Second Amended Complaint ("SAC") came on for hearing before the Court on March 25, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on March 24, 2025.

I. Alleged Facts

According to the SAC, Plaintiff is an African American who suffers from a disability within the meaning of the Fair Employment and Housing Act ("FEHA"). (SAC, ¶ 8.) Beginning in 2005, Plaintiff worked for the County's Probation Department at James Ranch and wrote reports, had regular interactions with the public and court system through drafting and preparing progress reports, until he was forced to resign in October 2021. (SAC, ¶ 9.) In April 2020, he requested accommodations to work from home or to be transferred to position that would allow him to work from home or stay in his current position and "avoid or limit in person contact" as an accommodation for his disability and being in the high-risk category for COVID-19. (SAC, ¶¶ 11-

12.) Despite Plaintiff providing the County “with notes from his medical doctor regarding the requested accommodations” the County repeatedly refused to accommodate Plaintiff’s request or to engage, in good faith, in the interactive process. (SAC, ¶¶ 11-12, 19.)

Plaintiff alleges the County initially offered to compensate him with paid administrative leave but reneged and offered him an ultimatum to return working onsite without accommodations or to use his leave banks and benefits. (SAC, ¶¶ 15, 17.) In or around April/May 2020, Plaintiff complained about the County’s “deceptive business practices” and requested a reimbursement for his “depleted benefits,” to which his female manager replied, “if you all thought like you, no one would come to work.” (SAC, ¶ 16.) Plaintiff alleges this “racist” comment and “trope” was directed to him, and other African American employees. (*Ibid.*)

On September 28, 2020, the County changed Plaintiff’s status to “Health Leave” in retaliation for his requests for accommodations. (SAC, ¶ 21.) The County also stopped paying for Plaintiff’s insurance benefits. (*Ibid.*) The County refused to accommodate him and forced him to go on leave with no benefits, until he had no option but to resign in October 2021. (SAC, ¶¶ 22, 32.)

Plaintiff initiated this action on February 27, 2023, asserting: (1) disability discrimination; (2) failure to accommodate; (3) failure to engage in interactive process; (4) race and sex discrimination; (5) retaliation; and (6) wrongful termination in violation of public policy. On October 27, 2023, the Court issued an order sustaining the County’s demurrer with leave to amend all claims except the wrongful termination claim, which Plaintiff agreed to dismiss, but overruled the County’s demurrer on uncertainty grounds. On November 27, 2023, Plaintiff filed his FAC, asserting: (1) disability discrimination; (2) failure to accommodate; (3) failure to engage in interactive process; (4) race and sex discrimination; and (5) retaliation. This Court issued an order sustaining the County’s demurrer on all five causes of action with leave to amend. (See Court Order Case No. 23CV412192 entitled *Ralph Jackson vs. County of Santa Clara; and DOES 1-25*, filed on April 12, 2024.)

On April 30, 2024, Plaintiff filed the operative pleading, the SAC, alleging the same causes

1 of action. On December 6, 2024, the County filed its demurrer to the SAC on the ground¹ that it
2 fails to state sufficient facts (Code Civ. Proc. § 430.10, subd. (e).) Plaintiff opposes the demurrer.
3 The County filed its reply on March 18, 2025.

4 **II. The County's Request for Judicial Notice ("RFJN")**

5 The County requests the Court to take judicial notice of "the meaning of the term
6 'immunocompromised,' as informed by[:]"

7 Yale Medicine website, What Does It Mean To Be 'Immunocompromised'?
8 [https://www.yalemedicine.org/news/what-does-](https://www.yalemedicine.org/news/what-does-immunocompromised-mean)
9 [immunocompromised-mean](https://www.yalemedicine.org/news/what-does-immunocompromised-mean)

10 The cited document is a Yale Medicine webpage purporting to define the term
11 "immunocompromised." (County's RFJN ISO County's Demurrer to Plaintiff's SAC, p. 2; Declaration
12 of Nathan A. Greenblatt in Support of Demurrer to Plaintiff's SAC ("Greenblatt Decl."), Exh. 2.) The
13 County argues the Court may take judicial notice of "the true signification of all English words and
14 phrases, pursuant to Evidence Code section 451, subdivision (e)." (County RFJN, p. 2:16-
15 18.) Plaintiff argues the website document is improper extrinsic evidence and lacks foundation.

16 The request for judicial notice of this document is GRANTED. The definition of the word
17 "immunocompromised" is relevant to the County's demurrer to Plaintiff's disability discrimination
18 claim. When interpreting a statute, courts "appropriately refer to the dictionary definition" to
19 ascertain the ordinary, usual meaning of a word. (*Wasatch Property Management v. Degrade* (2005)
20 35 Cal.4th 1111, 1121–1122; see also *Golden Sec. Thrift & Loan Ass'n v. First Am. Title Ins. Co.* (1997)
21 53 Cal.App.4th 250, 256 [taking judicial notice of various dictionary definitions].) Evidence Code
22 section 451, subdivision (e) also requires judicial notice be taken of "[t]he true signification of all
23 English words and phrases." (*Sierra Club v. Superior Court* (2013) 57 Cal.4th 157, 171; *California*
24 *Public Records Research, Inc. v. County of Stanislaus* (2016) 246 Cal.App.4th 1432, 1445-1446 ["even

25
26
27 ¹ While the notice of demurrer states that the County is demurring on uncertainty grounds, the memorandum of points
28 and authorities in support of the demurrer does not contain an uncertainty argument. (See Defendant County of Santa Clara's Notice of Demurrer and Demurrer to Plaintiff's SAC, p. 1:19-24.) Consequently, this Court will solely address the County's failure to state a claim argument.

1 if the trial court considered and relied on the dictionary definitions submitted by County, that
2 reliance was not error. When interpreting a statute, courts “appropriately refer to the dictionary
3 definition” to ascertain the ordinary, usual meaning of a word. (*Wasatch Property Management v.*
4 *Degrade* (2005) 35 Cal.4th 1111, 1121–1122.) Moreover, mandatory language in Evidence Code
5 section 451, subdivision (e) requires judicial notice be taken of “[t]he true signification of all English
6 words and phrases.” (*Sierra Club v. Superior Court* (2013) 57 Cal.4th 157, 171 [[Supreme Court took
7 judicial notice of dictionary definition of “program”]; *Golden Security Thrift & Loan Assn. v. First*
8 *American Title Ins. Co.* (1997) 53 Cal.App.4th 250, 256 [“true signification” of a word is best derived
9 from dictionary definitions].)

10 Defendant’s request for judicial notice of Plaintiff’s Complaint of Discrimination under FEHA
11 is GRANTED. (Evid. Code, § 452, subd. (c) [official acts of public agencies].) “The court may
12 take judicial notice of the filing and contents of a government claim, but not the truth of the
13 claim.” (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 368, fn. 1; *Fowler v. Howell* (1996) 42
14 Cal.App.4th 1746, 1752-1753 [“Evidence Code section 452, subdivision (c), permits the trial court
15 to take judicial notice of the records and files of a state administrative board.”].) In
16 taking judicial notice of these documents, a court may take notice of their existence only and not the
17 truth of the statements contained within. (*Fremont Indem. Co. v. Fremont General Corp.* (2007) 148
18 Cal.App.4th 97, 113-114.)

19 **III. Whether the Demurrer Was Brought in Bad Faith**

20 Plaintiff argues the parties’ pre-demurrer meet and confer was not conducted in good faith.
21 (Opp., p. 2:15-24.) Plaintiff asserts the County offered to “not pursue a Demurrer if Plaintiff agreed
22 to withdraw the disability-related causes of action,” and that “leveraging a demurrer” in this manner
23 is improper. (*Ibid.*) There is no factual evidence cited in Plaintiff’s counsel’s declaration to support
24 this claim. (Declaration of Vincent Tong in Opp. (“Tong Decl.”), ¶ 5, Exh. A – Meet and Confer
25 Correspondence.) The email exchange between Mr. Tong and County counsel does not indicate that
26 the County’s counsel conceded to Mr. Tong’s assertion that “leveraging a third demurrer in an
27 attempt to persuade Plaintiff to waive substantive rights is not proper,” but instead simply replied
28 with “I will try calling around 2 pm.” (See Tong Decl., ¶ 5, Exh. A, pp. 1, 3.) Thus, Plaintiff’s argument

1 lacks merit. The County also explained that during a meet and confer call, County counsel suggested
2 “a possible compromise to resolve the demurrer that involved Plaintiff dismissing any of his causes
3 of action.” (Reply in Support of Defendant County of Santa Clara’s Demurrer to Plaintiff’s SAC
4 (“Reply”), p. 2:20-28; Declaration of Nathan Greenblatt in Reply (“Greenblatt Reply Decl.”), ¶ 2.) This
5 is the type of communication expected during meet and confer and does not demonstrate bad faith.
6 (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016 [meet and confer rule is
7 designed to encourage the parties to work out their differences informally so as to avoid the
8 necessity for a formal order].) The Court will thus turn to the substance of the demurrer.

9 **IV. Legal Standard**

10 “The party against whom a complaint or cross-complaint has been filed may object, by
11 demurrer or answer as provided in [Code of Civil Procedure s]ection 430.30, to the pleading on any
12 one or more of the following grounds: . . . (e) The pleading does not state facts sufficient to constitute
13 a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) A demurrer may be utilized by “[t]he party
14 against whom a complaint [] has been filed” to object to the legal sufficiency of the pleading as a
15 whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by
16 statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)

17 The court treats a demurrer “as admitting all material facts properly pleaded, but not
18 contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management*
19 *Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A
20 demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual
21 allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the
22 possible difficulty in making such proof does not concern the reviewing court.” (*Committee on*
23 *Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a
24 demurrer, courts may consider matters subject to judicial notice.² (*Scott v. JPMorgan Chase Bank,*
25 *N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to a complaint
26 can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

27
28 ² On its own motion, the Court takes judicial notice of both the Complaint and FAC. (Evid. Code, § 452, subd. (d).)

V. Analysis

A. First Cause of Action: Disability Discrimination

Under FEHA, “it is an unlawful employment practice... for an employer because of... disability...to refuse to hire or employ the person or to refuse to select the person for a training program leading to employment, or to bar or to discharge the person from employment or from a training program leading to employment, or to discriminate against the person in compensation or in terms, conditions, or privileges of employment.” (Gov. Code, 12940, subd. (a).) “The specific elements of prima facie case varies depending on the particular facts. Generally, the plaintiff must provide evidence that (1) he was member of protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, denial of an available job, and (4) some other circumstances suggest discriminatory motive.” (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 355 (*Guz*) [internal citations omitted].)³

Under the FEHA, a physical disability includes having a physiological disease, disorder, condition, cosmetic disfigurement, or anatomical loss that does both of the following: (1) affects one or more of the neurological, immunological, musculoskeletal, special sense organs, respiratory, cardiovascular, reproductive, digestive, genitourinary, hemic, lymphatic, skin, and endocrine systems; and (2) limits a major life activity. (Gov. Code, § 12926, subd. (m)(1).) A disability “limits” a major life activity if it makes the activity difficult. (Gov. Code, § 12926, subd. (m)(1)(B).) A “major life activity” is construed broadly to include physical, mental, and social activities, including working. (Gov. Code, § 12926, subd. (m)(1)(B)(iii).) Whether a major life activity is limited “shall be determined without regard to mitigating measures such as medications, assistive devices, prosthetics, or reasonable accommodations, unless the *mitigating measure itself limits a major life activity*.” (Gov. Code, § 12926, subd. (m)(1)(B)(i), italics added.)

FEHA contains detailed definitions for various disabilities. (Gov. Code., § 12926.) “Mental disability’ includes . . . having any mental or psychological disorder or condition, such as intellectual

³ Some courts omit or modify the fourth element from *Guz*, *supra*.

1 disability, organic brain syndrome, emotional or mental illness, or specific learning disabilities, that
2 limits a major life activity.” (Gov. Code, § 12926, subd. (j)(1).) A “physical disability” includes
3 “[h]aving any physiological disease, disorder, condition, cosmetic disfigurement, or anatomical loss
4 that” affects one or more body systems and limits a major life activity. (Gov. Code, § 12926, subd.
5 (m)(1)(B).) FEHA requires that the physical disability be an “active impairment” that presently
6 makes engagement in a “major life activity” difficult, not that it hypothetically could. (Gov. Code, §
7 12926, subd. (m)(1)(B)(ii) [“A physiological disease, disorder, condition, cosmetic disfigurement,
8 or anatomical loss limits a major life activity if it makes the achievement of the major life activity
9 difficult”].)⁴

10 Plaintiff alleges he had a disability, a record of disability, and/or was perceived as or treated
11 as having a disability by the County. (SAC, ¶ 39.) And that he “notified [the County] that he suffered
12 from chronic health conditions related to his metabolic disorder, sleep disorder, high blood
13 pressure, was immunocompromised and was in the increased risk category for suffering severe
14 effects of COVID-19 if contracted, including decreased lung functions and death.” (SAC, ¶ 11.)

15 The County again maintains Plaintiff’s alleged susceptibility to “suffering severe effects of
16 COVID-19 if contracted, including decreased lung functions and death” is insufficient to
17 demonstrate a qualified disability under FEHA and argues that Plaintiff does not allege he
18 contracted COVID-19, but instead, presents a hypothetical that if he did, he would suffer severe
19 effects. County further contends Plaintiff fails to allege facts demonstrating how any of the above-
20 mentioned conditions limited his ability to work. For example, Plaintiff does not identify his “health
21 conditions related to his metabolic disorder,” does not explain how those unidentified health
22 conditions limited his ability to work and does not explain how his “sleep disorder” or high blood
23 pressure limited his ability to work. (*Ibid.*) Defendant further argues that “[b]eing
24

25
26 ⁴ Although the Court previously admonished the County that cases involving the standard for establishing
27 a disability under the American Disabilities Act are unhelpful because they involve a different standard for
28 what constitutes a disability, the County again relies on such cases. The County’s repeated discussion of
“[Department of Fair Employment and Housing] Employment Information on COVID-19” is equally
unhelpful given that the document was published after the relevant events in this matter.

1 immunocompromised does not mean a person is disabled.” (Dem.MPA, p. 9:8-13; see also *Hodges*
2 *v. Cedars-Sinai Medical Center* (2023) 91 Cal.App.5th 894, 914 (*Hodges*) [finding that
3 immunocompromised plaintiff was not disabled].) In support, the County relies on multiple federal
4 district court opinions rejecting FEHA disability discrimination claims in circumstances where
5 merely being immunocompromised without alleging what major life activities are limited by these
6 conditions. The Court finds the *Hodges* case unhelpful here given that it was at the summary
7 judgment stage and the pleading standards are much higher than at the demurrer stage.

8 Plaintiff’s cited authority does not remedy these issues. *Soria v. Univision Radio Los Angeles,*
9 *Inc.* (2016) 5 Cal.App.5th 570, 588, 596-597 (*Soria*) involved a plaintiff with a debilitating stomach
10 tumor resulting in missed work due to medical appointments related to the tumor. (*Id.*, at p. 588.)
11 Here, the SAC is devoid of any allegations stating that Plaintiff’s health conditions required him to
12 miss work to obtain treatment. (Reply, p. 4:23-24.) *Claudio v. Regents of the University of California*
13 (2005) 134 Cal.App.4th 224 (*Claudio*), is also misplaced given that the disability discrimination
14 claim was addressed on summary judgment, and the court did not address whether Plaintiff’s
15 physical impairment qualified as a FEHA disability. (*Claudio*, 134 Cal.App.4th 224.)

16 *Brown v. Los Angeles Unified School Dist.* (2021) 60 Cal.App.5th 1092 (*Brown*) does not
17 bolster Plaintiff’s claim that he has a cognizable FEHA disability either. In *Brown*, the plaintiff
18 alleged her doctor diagnosed her with “electromagnetic hypersensitivity (EHS), also referred to as
19 ‘microwave sickness.’” (*Brown, supra*, at p. 1099.) The plaintiff further alleged that “[f]ollowing
20 activation of [her employer’s] new Wi-Fi system on April 23, 2015, Brown began to experience
21 chronic pain, headaches, nausea, itching, burning sensations on her skin, ear issues, shortness of
22 breath, inflammation, heart palpitations, respiratory complications, foggy headedness, and
23 fatigue.” (*Ibid.*) Thus, in *Brown*, the plaintiff did not merely allege that she had a health condition
24 that could potentially be exacerbated if she returned to work, but instead alleged that “she had a
25 specific, diagnosed health condition—microwave sickness—that had actually caused serious,
26 debilitating effects at work.” (Reply, pp. 5:26-28; 6:1.)

27 Here, Plaintiff’s SAC includes a laundry list of disorders, without more, but fails to allege
28 how these disorders affected his work performance compared to a normal baseline. (See SAC, ¶

1 11 ["...[Plaintiff] suffered from chronic health conditions related to his metabolic disorder, sleep
2 disorder, high blood pressure, was immunocompromised and was in the increased risk category
3 for suffering severe effects of COVID-19...].) As a result, the Court again cannot determine whether
4 Plaintiff's disability falls under the FEHA definition and whether he is a member of a protected class
5 who suffered a disability. (See *Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d
6 780, 795 [the general rule is that statutory causes of action must be pleaded with particularity];
7 *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 [same] (*Covenant Care*).)

8 As to adverse employment action, Plaintiff alleges, he was "terminated in material part
9 because of his physical disability," but fails to allege any facts in support of that allegation. (SAC, ¶¶
10 42, 54.) Contrary to Plaintiff's argument, SAC paragraphs 31 and 32, say nothing about
11 discriminatory intent based on a disability, but instead reference race and gender. (See, e.g., SAC, ¶
12 31 ["DEFENDANTS continued to deny PLAINTIFF's requests to work remotely...while offering
13 these available positions to individuals who were not African American and not male].)

14 Further, Plaintiff's allegation involving County manager Jill Ugalde's statement - "[I]f you all
15 thought like you, no one would come to work" - is not only labelled a "racist comment," but also
16 involved his request for "depleted benefits" not his alleged disability. (SAC ¶ 16.) This allegation
17 fails to allege discrimination on the basis of disability. Plaintiff accordingly fails to allege facts that
18 suggest discriminatory motive for his termination. (*Guz*, 24 Cal.4th at p. 355.)

19 Plaintiff was given two opportunities for leave to amend per this Court's previous two
20 orders. (See *City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 (*Stockton*) [if a plaintiff has not
21 had an opportunity to amend the complaint in response to a demurrer, leave to amend is liberally
22 allowed as a matter of fairness].) Plaintiff attaches a proposed Third Amended Complaint ("TAC")
23 to his declaration. (See Declaration of Vincent Tong, Esq. in Support of Opposition to Defendant
24 Santa Clara County's Demurrer to Plaintiff Ralph Jackson's First Amended Complaint, ¶ 6, Exh. B -
25 Proposed Third Amended Complaint.) While the proposed TAC is not the subject of this demurrer,
26 upon review, it does not appear that the TAC would solve the issues identified here. The TAC even
27 further conflates Plaintiff's allegations regarding alleged disabilities and alleged racial
28 discrimination. By way of example only, after numerous amendments, other than the specific

1 comments attributed to the County manager, it is not clear (a) whether Plaintiff claims he was
2 discriminated against based on race or disability (or both), (b) if disability, what disability and how
3 the disability led to an adverse employment action, (c) if racial discrimination, what adverse
4 employment action allegedly flowed from that racial discrimination, (d) what role the no
5 confidence vote could have had, if any, in the County's decision not to let Plaintiff work from home
6 given the chronology, (d) what really lead Plaintiff to resign, or (e) if Plaintiff's resignation was
7 really a result of any of the above.

8 Accordingly, the County's demurrer to the first cause of action is SUSTAINED WITHOUT
9 LEAVE TO AMEND.

10 **B. Second Cause of Action: Failure to Accommodate**

11 It is an unlawful employment practice, "[f]or an employer... to fail to make reasonable
12 accommodation for the known physical or mental disability of an applicant or employee." (Gov.
13 Code, § 12490, subd. (m).) In addition, to a general prohibition against unlawful employment
14 discrimination based on disability, FEHA provides an independent cause of action for an employer's
15 failure to provide a reasonable accommodation for an applicant's or employee's known disability.
16 (Gov. Code, § 12940, subds. (a) & (m).)

17 "The elements of a failure to accommodate claim are (1) the plaintiff has a disability under
18 the FEHA; (2) the plaintiff is qualified to perform the essential functions of the position; and (3) the
19 employer failed to reasonably accommodate the plaintiff's disability." (*Scotch v. Art Institute of*
20 *California* (2009) 173 Cal.App.4th 986, 1009-1010 (*Scotch*).) A "reasonable accommodation" is any
21 "modification or adjustment to the workplace that enables the employee to perform the essential
22 functions of the job held or desired. (*Id.*, at p. 1010.)

23 Reasonable accommodation may include "[j]ob restricting, part-time or modified work
24 schedules, reassignment to a vacant position...and other similar accommodations for individuals
25 with disabilities. (Gov. Code, § 12926, subd. (p).) "FEHA does not obligate an employer to choose
26 the best accommodation or the specific accommodation a disabled employee or applicant seeks. It
27 only requires that the accommodation chosen be 'reasonable.'" (*Raine v. City of Burbank* (2006) 135
28 Cal.App.4th 1215, 1222 (*Raine*).) Plaintiff must show he or she suffers from a disability covered by

1 FEHA and that he or she is a qualified individual. (*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th
2 245, 256 (*Jensen*).) To show that a plaintiff is a qualified individual, plaintiff must prove that he or
3 she can perform the essential functions of the position to which reassignment is sought, rather than
4 the essential functions of the existing position. (*Ibid.*)

5 As stated above, the SAC does not allege facts sufficient to support a physical disability under
6 FEHA. Additionally, while Plaintiff alleges his prior work experience in “procedure and policy”
7 writing for the Probation Department to support his claim that he was qualified for other work (SAC,
8 ¶ 13), Plaintiff does not sufficiently plead that the County failed to provide a reasonable
9 accommodation. (See *Raine, supra*, 135 Cal.App.4th at p. 1222.) Plaintiff concedes in his prior
10 complaints that the County granted Plaintiff a leave of absence from work and Plaintiff repeatedly
11 extended that leave. (See Complaint, ¶ 20.) The standard is whether the accommodation was
12 “reasonable,” not whether it was the accommodation Plaintiff chose. (*Jensen, supra*, 85 Cal.App.4th
13 at p. 263 [“Holding a job open for a disabled employee who needs time to recuperate or heal is in
14 itself a form of reasonable accommodation and may be all that is required where it appears likely
15 that the employee will be able to return to an existing position at some time in the foreseeable
16 future”].) Thus, the demurrer to the second cause of action is SUSTAINED WITHOUT LEAVE TO
17 AMEND. (See *Stockton, supra*, 42 Cal.4th at p. 747.)

18 C. Third Cause of Action-Failure to Engage in the Interactive Process

19 The FEHA imposes a duty on the employer “to engage in a timely, good faith, interactive
20 process with the employee or applicant to determine effective reasonable accommodations, if any,
21 in response to a request for reasonable accommodation by an employee or applicant with a known
22 physical or mental disability or known medical condition.” (Gov. Code, § 12940, subd. (n).) “An
23 employer’s failure to engage in this process is a separate FEHA violation.” (*Wilson v. County of*
24 *Orange* (2009) 169 Cal.App.4th 1185, 1193.)

25 “The interactive process imposes burdens on both the employer and employee. The
26 employee must initiate the process unless the disability and resulting limitations are
27 obvious. ‘Where the disability, resulting limitations, and necessary reasonable accommodations,
28 are not open, obvious, and apparent to the employer, ... the initial burden rests primarily upon the

1 employee ... to specifically identify the disability and resulting limitations, and to suggest the
2 reasonable accommodations.” (*Scotch, supra*, 173 Cal.App.4th at p. 1013 [citations
3 omitted].) “Although it is the employee’s burden to initiate the process, no magic words are
4 necessary, and the obligation arises once the employer becomes aware of the need to consider an
5 accommodation.” (*Ibid.*) “Once the interactive process is initiated, the employer’s obligation to
6 engage in the process in good faith is continuous.” (*Ibid.*)

7 As stated above, the SAC does not allege facts sufficient to support a physical disability under
8 FEHA. Additionally, the SAC, like Plaintiff’s prior complaints, contain conclusory allegations
9 regarding the County’s failure to engage in the interactive process. Specifically, Plaintiff asserts the
10 County “refused to engage in good faith timely interactive process to determine reasonable
11 accommodations” is a threadbare allegation which restates the applicable statutory language under
12 Government Code section 12950. (SAC ¶¶ 12, 14, 18, 22-23, 32, 90; see also *Brown v. Ralphs Grocery*
13 *Co.* (2018) 28 Cal.App.5th 824, 837 [“bare allegations were insufficient because they simply
14 paraphrased the allegedly violated statutes.”].) Plaintiff argues that “even after Plaintiff provided all
15 the relevant information for accommodation, Defendant did not evaluate his qualifications or skills
16 or request further information about eligible positions, or engage with Plaintiff to determine
17 whether to place him in the contact tracer or similar positions that would accommodate Plaintiff. In
18 fact, Defendant never reached out to Plaintiff at all about available jobs,” but Plaintiff’s SAC is devoid
19 of these allegations.

20 Thus, the demurrer to the third cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

21 **D. Fourth Cause of Action: Race and Sex Discrimination**

22 To state a claim under this FEHA section, a plaintiff must show that (1) he was a member of
23 a protected class, (2) he was qualified for the position he sought or was performing competently in
24 the position he held, (3) he suffered an adverse employment action, such as termination, demotion,
25 denial of an available job, and (4) some other circumstances suggest discriminatory motive. (*Guz,*
26 *supra*, 24 Cal.4th at p. 355.)

27 Adverse employment actions must “materially affect the terms, conditions, or privileges of
28 employment to be actionable.” (*Whitehall v. County of San Bernardino* (2017) 17 Cal.App.5th 352,

366-367.) “The ‘materiality’ test encompasses not only ultimate employment decisions, but ‘also the entire spectrum of employment actions that are reasonably likely to be adversely and materially affect an employee’s job performance or opportunity for advancement in his or her career.’” (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1387.)

An employee’s termination can be actual or constructive. “Constructive discharge occurs when the employer’s conduct effectively forces an employee to resign. Although the employee may say ‘I quit,’ the employment relationship is actually severed involuntarily by the employer’s acts, against the employee’s will. As a result, a constructive discharge is legally regarded as a firing rather than a resignation.” (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1244-1245.)

Plaintiff is an African American man. (Complaint, ¶ 52.) He now alleges that the County’s senior probation manager, Ugalde, a Caucasian female, “was the decision maker and/or participated in the decision to deny [Plaintiff’s] requested reasonable accommodations.” (SAC, ¶ 24.) He further alleges that during a meeting with Plaintiff, Ugalde stated “if you all thought like you, no one would come to work.” (SAC, ¶ 16.) Plaintiff conclusorily alleges this standalone comment made by Ugalde was a “racist trope” and made shortly after he requested a reimbursement of his depleted benefits. (*Ibid.*) However, Ugalde’s “passing comments,” albeit insensitive, do not demonstrate a clear discriminatory motive on the basis of Plaintiff’s race and gender.

As for Plaintiff’s former supervisor, Joel Grabschied, the Court previously ruled Plaintiff failed to connect his alleged constructive termination to the mistreatment by Grabschied, and there are no allegations in the SAC that would change its prior ruling. Plaintiff’s opposition discussion regarding Ugalde’s attempt to dissuade Plaintiff from filing a formal action against Grabschied, and then subsequently pressuring him to participate in the County’s investigation fails to demonstrate how these actions are discriminatory on the basis of Plaintiff’s race or sex. (See SAC, ¶¶ 28, 30, 84-85; see also Opp., p. 12:16-28.)

Consequently, the County’s demurrer to the fourth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

E. Fifth Cause of Action: Retaliation

Government Code section [2940, subdivision (h) provides:

1 For any employer, labor organization, employment agency, or person to
2 discharge, expel, or otherwise discriminate against any person because the
3 person has opposed any practices forbidden under this part or because the
4 person has filed complaint, testified, or assisted in any proceeding under this
5 part.

6 (Gov. Code, 12940 (h).)

7 “In order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show
8 (1) they engaged in a “protected activity”; (2) the employer subjected the employee to an adverse
9 employment action; and (3) a causal link existed between the protected activity and the employer’s
10 action.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) “Employees need not explicitly
11 and directly inform their employer that they believe the employer’s conduct was discriminatory or
12 otherwise forbidden by the FEHA.” (*Castro-Ramirez v. Dependable Highway Express, Inc.* (2016) 2
13 Cal.App.5th 1028, 1046.)

14 Plaintiff alleges that after he requested reasonable accommodations and opposed and
15 protested the discriminatory conduct of the County managers and supervisors, the County
16 retaliated against him by denying his request for accommodations, while other employees’ requests
17 were granted, pressuring him to return to work onsite without accommodations, refusing to grant
18 him options regarding alternate positions, terminating his health benefits, and placing him on an
19 involuntary leave of absence. (SAC, ¶¶ 85, 90.) As the Court stated above, it is unclear whether
20 Grabschied had a role in Plaintiff’s alleged termination after Plaintiff made complaints at the vote of
21 no confidence meeting. And although now, the SAC includes facts regarding the alleged harassment
22 from both the County’s probation supervisor and manager, it still fails to allege facts to support a
23 causal connection between his protected activity and the County’s ultimate actions. Specifically,
24 Plaintiff alleges that Ugalde, “a Caucasian female,” “participated in the decision to deny [his]
25 requested reasonable accommodations,” after she alternately attempted to dissuade, and then
26 persuade, him to participate in the complaint process against Grabschied. (See SAC ¶¶ 28, 30, 84-
27 85.) However, Plaintiff fails to link anything Ugalde allegedly said or did to the Grabschied
28 investigation.

Plaintiff cannot rely on “temporal proximity” because the SAC alleges Plaintiff participated
in a “Vote of No Confidence” against Grabschied in December 2019, which is not a “relatively short

1 time” before the alleged adverse employment action in October 2021. (*Morgan v. Regents of Univ.*
2 *of Cal* (2000) 88 Cal.App.4th 52, 69 [adverse action must follow “relatively short time” after
3 protected activity].) Plaintiff appears to concede this argument as he fails to address it in opposition
4 to the demurrer. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [failure to oppose
5 issue raised in demurrer deemed abandonment of the issue]; see also *Sehulster Tunnels/Pre-Con v.*
6 *Traylor Brothers, Inc./Obayashi Corp.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address
7 point is equivalent to a concession].) The demurrer is therefore alternatively sustainable on this
8 ground.

9 Accordingly, the demurrer to the fifth cause of action is SUSTAINED WITHOUT LEAVE TO
10 AMEND.

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12 **IT IS SO ORDERED.**

13
14 Date: _____

15 Hon. Evette D. Pennypacker
16 Santa Clara Superior Court Judge
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